



How to Talk With Your Legal Department About Open Source

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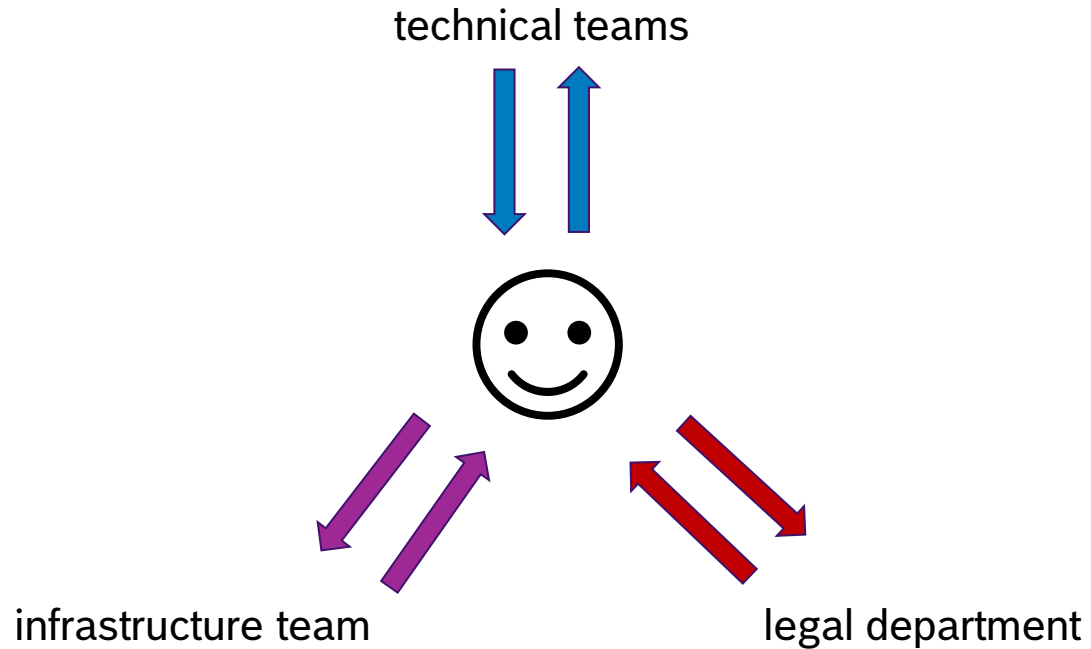


First thing's first..

- We'll touch upon some legal aspects, but this should not be considered legal advice.
- Not necessarily the opinion of my employer.
- If you need legal advice, talk to your lawyer / legal department.*

* with whom by the end of this presentation, I hope, you'll have an easier time communicating 😊

How I ended up here

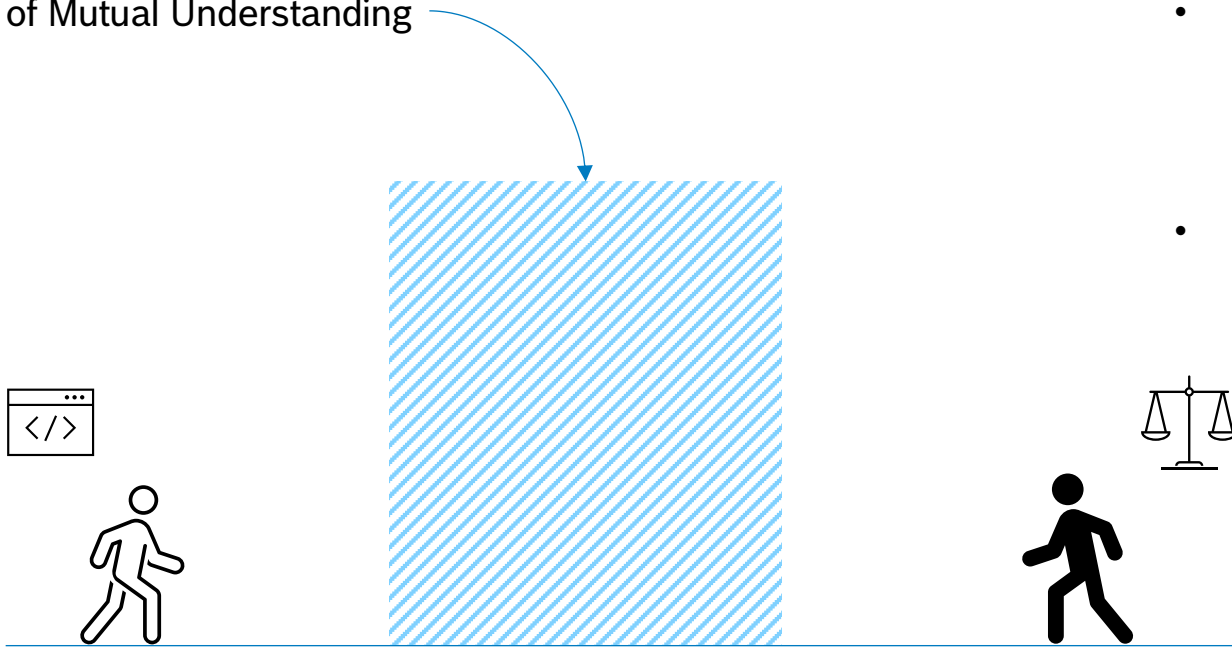


- Technical question?
- Question regarding an internal policy or process?
- Legal question?

If I had to start over from scratch in a new place, how would I do it?

Let's shrink the distance by talking about..

Zone of Mutual Understanding



- **Using** open source software
- **Contributing** to open source software
 - Writing code for existing projects
 - Incubating and publishing new open source projects
- **Standards** and **tools** for **managing** open source software

Let's shrink the distance by talking about..

1. Using open source software
2. Contributing to open source software
3. Standards and tools for managing open source software

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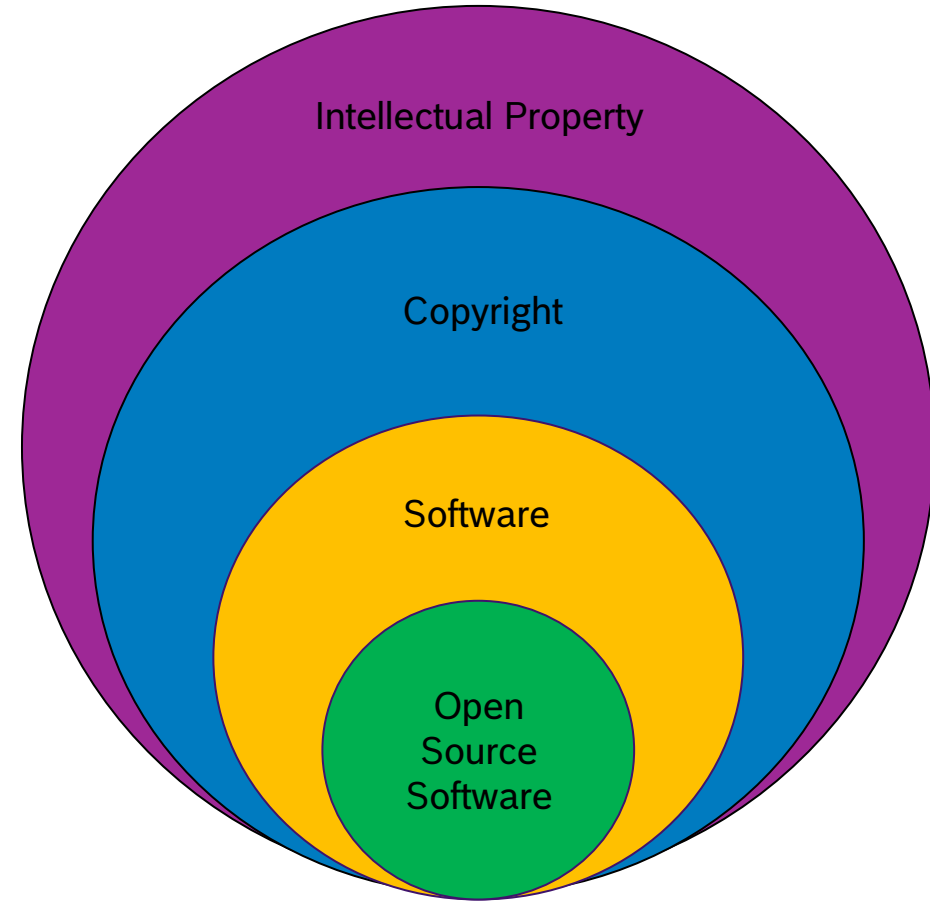
Using Open Source Software the Big Picture

In vertical software stacks across industries, open source penetration ranges from 20 to 85 percent of the overall software used*

* *Why Do Enterprises Use and Contribute to Open Source Software*, by Dan Whiting, 2022



Using Open Source Software the Big Picture



Copyright protects the specific *expression* of the program.

Using Open Source Software

the General Rule

Using third-party software is **prohibited**,
UNLESS you have legal ground, e.g. a license.

Using Open Source Software

open source's special licensing framework

	Commercial Licenses	Open Source Licenses
Source code	• In most case not available	• Available
Rights	• Highly limited use (e.g., number of users or machines, type of hardware)	• Freedom to use, study, change, redistribute the software* • No limitation on use
Obligations** (usually)	• Pay a licensing fee	• Distribute Notices (Copyright, License, Changes, Attribution) • Make source code available
Miscellaneous	• Not need to distinguish between distribution of original and derivative work → both are not permitted	• Distinguish between distribution of original and derivative work

* so-called [Four Freedoms](#)

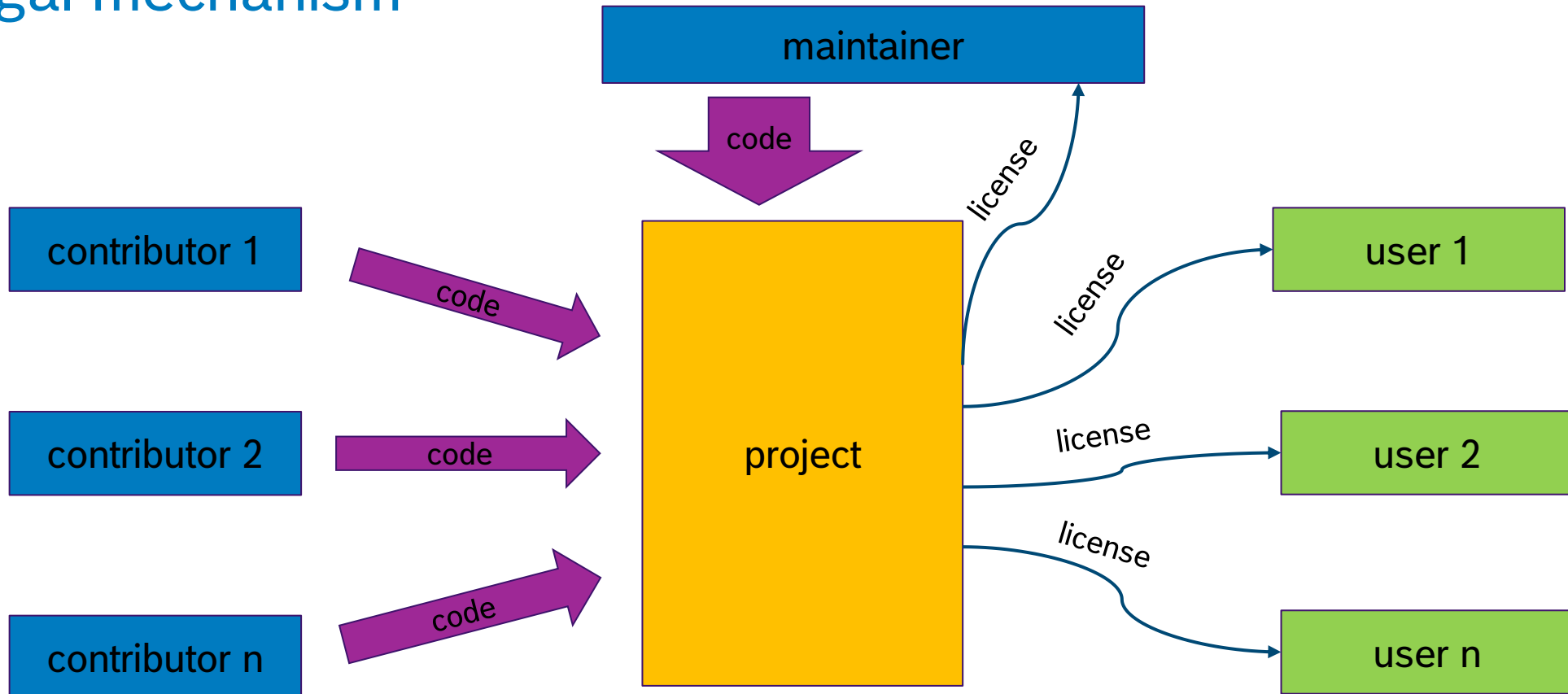
** Obligations of most OSS license arise when distribution copies of the software to third parties.

Let's shrink the distance by talking about..

1. Using open source software
- 2. Contributing to open source software**
3. Standards and tools for managing open source software

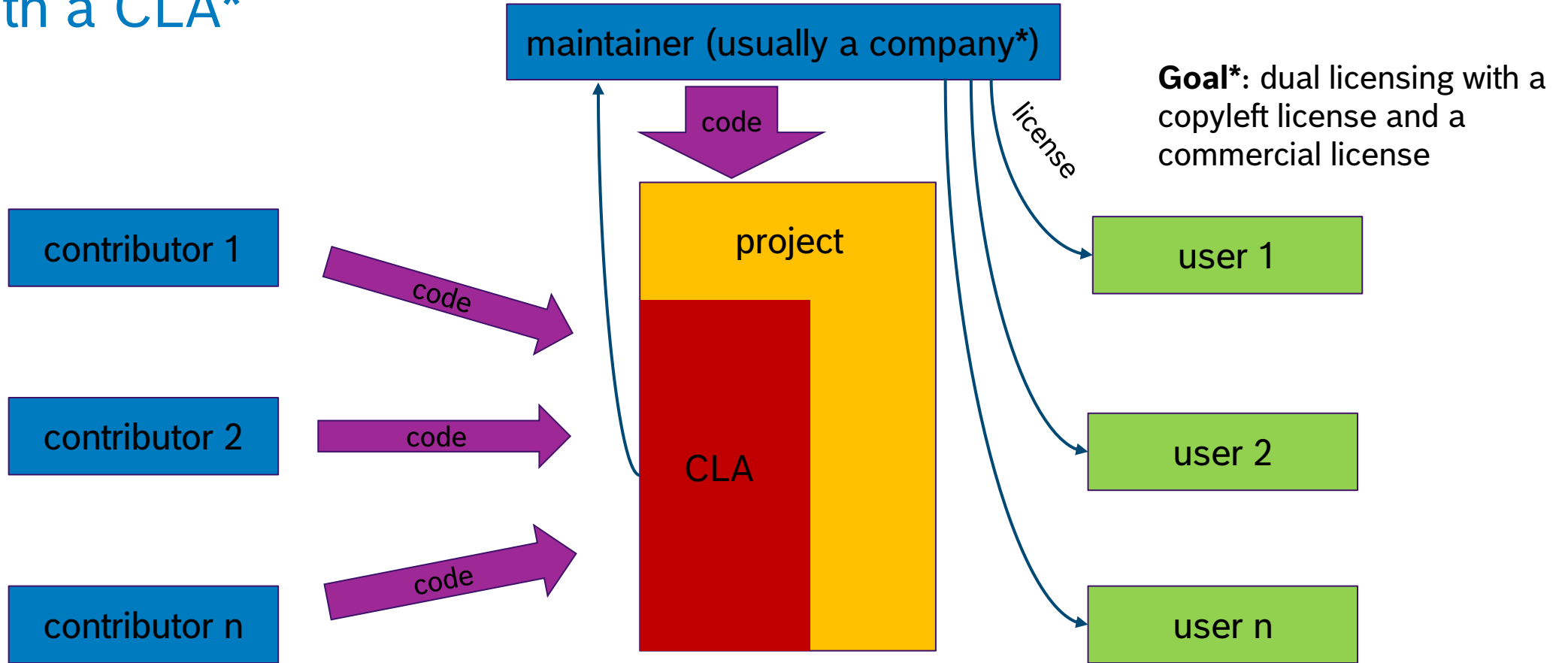
Contributing to Open Source Software

legal mechanism



license in == license out / inbound == outbound model

Contributing to Open Source Software with a CLA*



* not in every case

Contributing to Open Source Software but why?

- Contributing to existing projects?
- Publishing a company's own software as open source project?
- All of this (expensive) developer time to give something away to the whole world for free, including our competitors?

Contributing to Open Source Software

the main conundrum

Open Source software is *counterintuitive* for lawyers because it forces business to wrestle with the question:

How can we achieve our business goals by giving something away to the world for free?

→ This is, to a large extent, *the opposite* of the traditional logic of intellectual property in which lawyers are trained

Contributing to Open Source Software

reasons and models

Why?

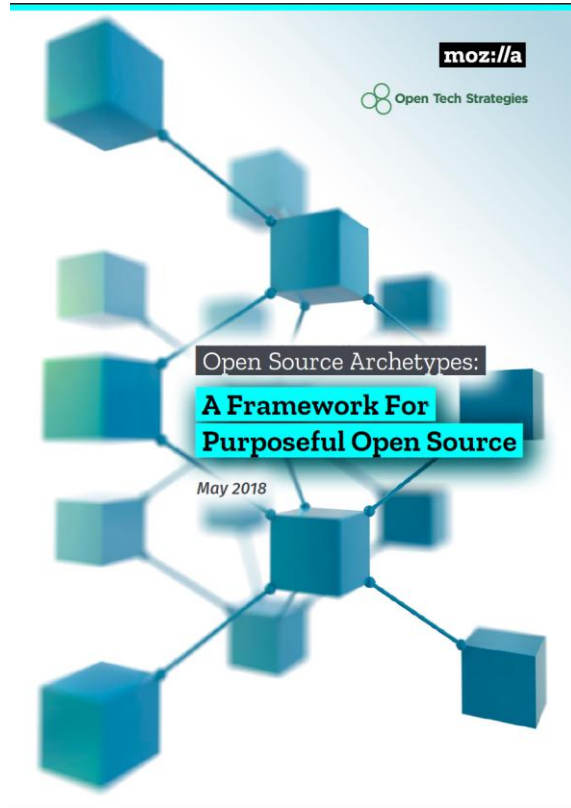
- collaborating on parts of the software stack that are not differentiating
- *de facto* standardization
- disrupting a competitor
- improving bargaining position with a supplier
- etc.

How?

- support model
- open core model
- SaaS model
- dual-licensing model
- etc.

Contributing to Open Source Software

the Mozilla Open Source Archetypes*



The archetypes are not business strategies in themselves; rather, they are **consequences** of business strategy decisions.**

Open Source Project Archetypes	10
Business-to-Business (B2B) Open Source	11
Multi-Vendor Infrastructure	12
Rocket Ship to Mars	14
Controlled Ecosystem	16
Wide Open	17
Mass Market	19
Specialty Library	21
Trusted Vendor	22
Upstream Dependency	24
Bathwater	25

* https://blog.mozilla.org/wp-content/uploads/2018/05/MZOTS_OS_Archetypes_report_ext_scr.pdf

** *ibid.*, p. 5

Let's shrink the distance by talking about..

1. Using open source software
2. Contributing to open source software
3. **Standards and tools for managing open source software**

Standards and Tools for Managing Open Source Software

the OpenChain Standards

ISO/IEC 5230 (License Compliance)



Flexible program size

Covering:

- Inbound processes
- Internal processes
- Outbound processes

Standards about process *points*

Not about process *content*

ISO/IEC 18974 (Security Assurance)



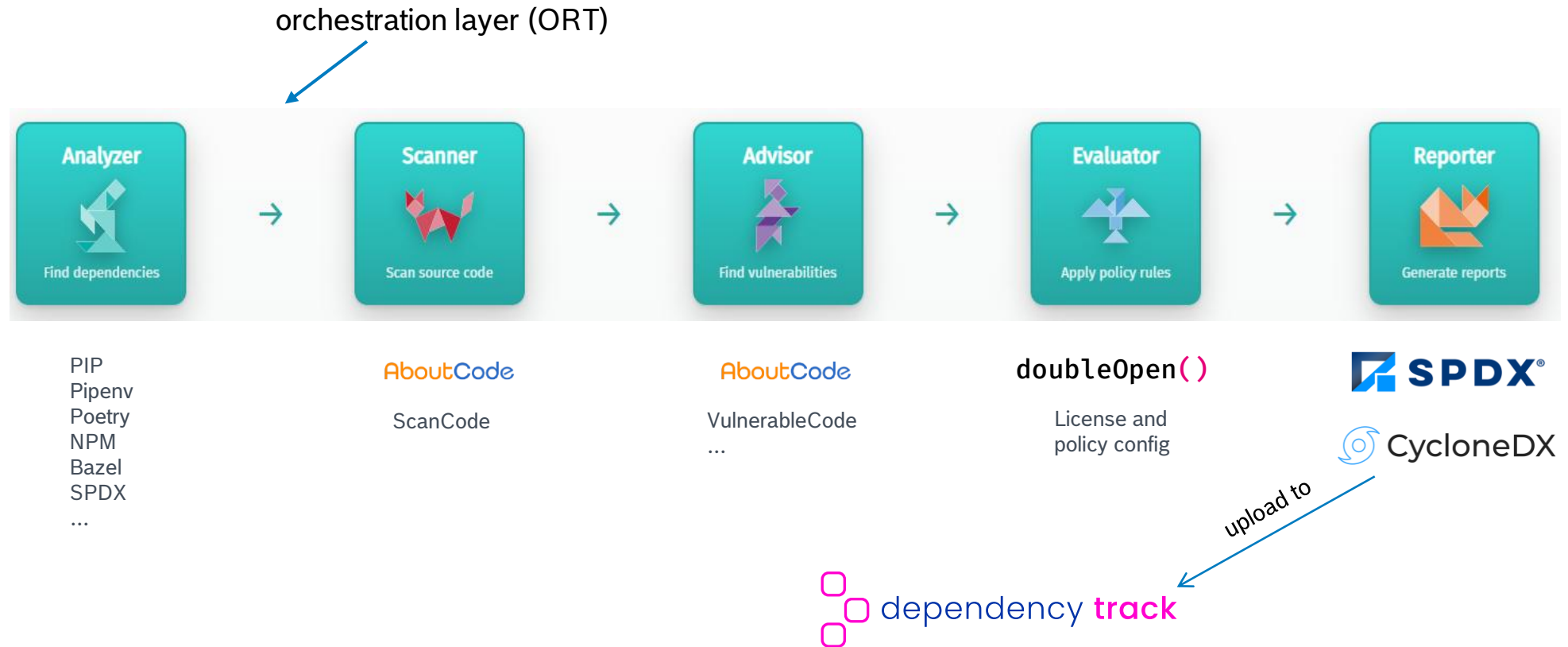
Standards and Tools for Managing Open Source Software

example open source tools

- [OSS Review Toolkit](#) (ORT) – a suite of tools to automate software compliance checks
- [Eclipse Apoapsis](#) – a scalable server implementation of the OSS Review Toolkit + process documentation
- [AboutCode](#) – open source Software Composition Analysis (SCA) tools and data for open compliance and software supply chain security
- [Fossology](#) – an open source license compliance software system and toolkit
- [SCANOSS](#) – open source inventory engine built for modern DevSecOps
- [Dependency-Track](#) – an intelligent Component Analysis platform that allows organizations to identify and reduce risk in the software supply chain

Standards and Tools for Managing Open Source Software

example open source tooling setup



Standards and Tools for Managing Open Source Software

Eclipse Apoapsis



Eclipse Apoapsis - ORT Server

The [Eclipse Apoapsis](#) project's **ORT Server** is a standalone application to deploy the [OSS Review Toolkit](#) as a service in the cloud.

Note

This project is currently in the [incubation phase](#) at the Eclipse Foundation and working towards making the first release. Once released, the project will use semantic versioning, until then breaking changes can occur at any time.



Process Blueprints



Reference Implementation



Community based



Standards and Tools for Managing Open Source Software

open tools for open source

A decision tree-based tool for choosing a suitable license for an open source project

License Picker 2.0

Welcome to my open source license picker. This script helps you choose an open source license to apply to your own software, among the choices below, based on a few questions. Here are the choices:

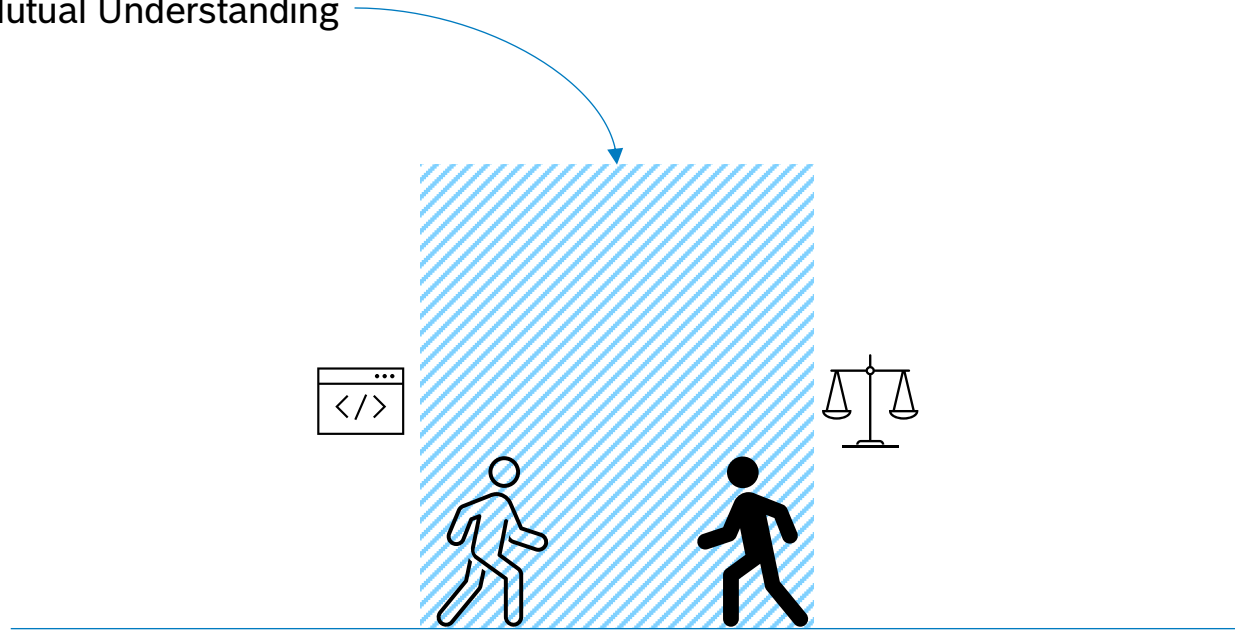


<https://heathermeeker.com/license-picker-2-0/>

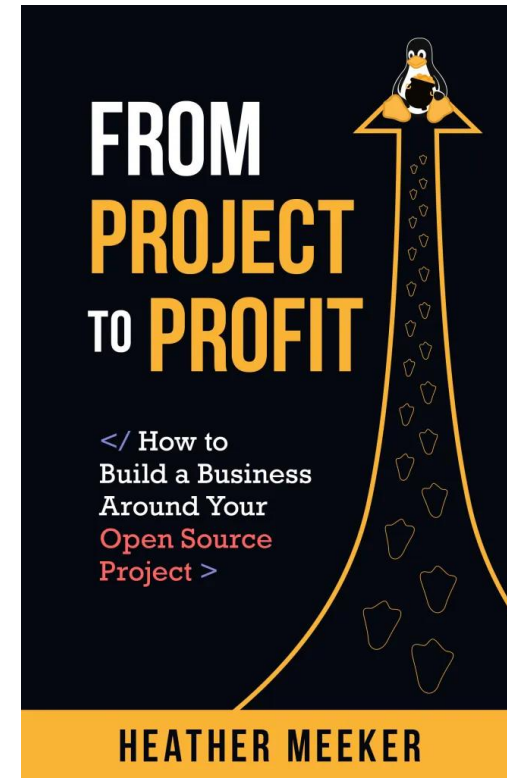
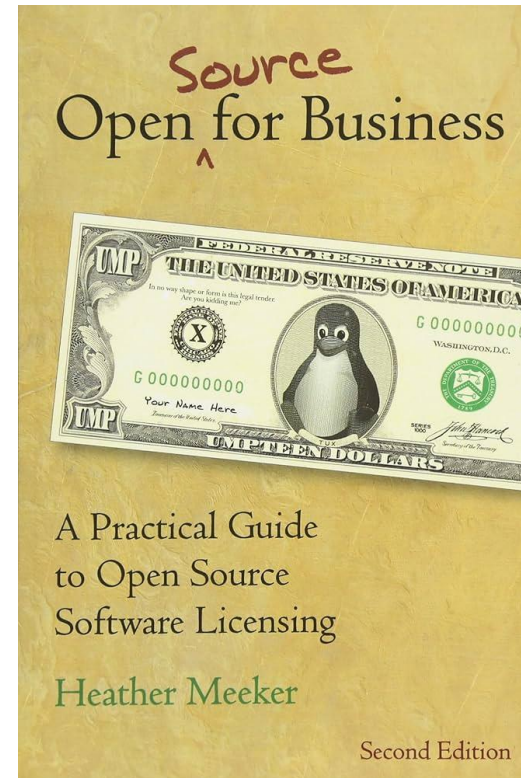
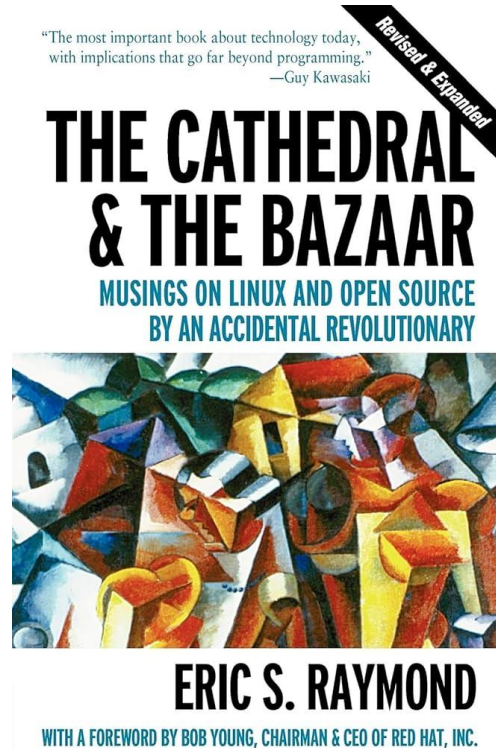
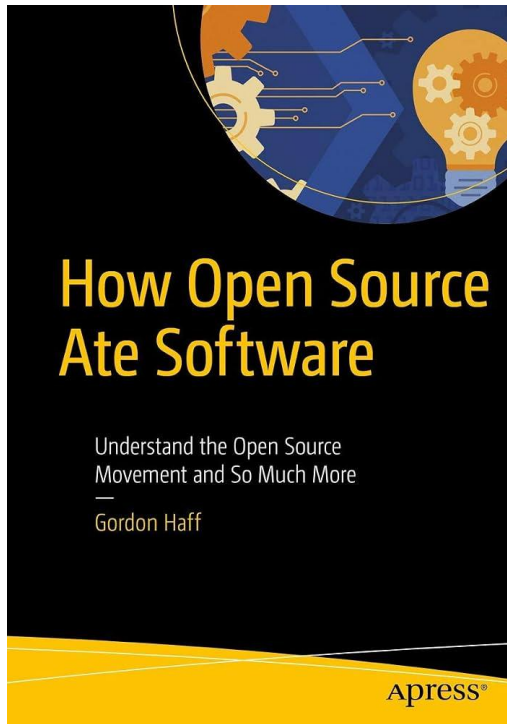


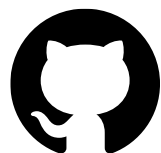
Let's shrink the distance by speaking one language

Zone of Mutual Understanding



Lastly, a few book recommendations





vladimir-slavov-iob

Slides:

